



Maritime &
Coastguard
Agency

Guidance

Annex D - Port Waste Management Plan - A Guide to Good Practice

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Contents

1. Introduction
2. Pollution from Shipping
3. Development of Port Waste Management Planning
4. What is a Waste Management Plan?
5. When must a plan be produced?
6. Consultation with customers
7. Data collection and assessing the need for waste reception facilities
8. Information to be included in the plan
9. Information to be made available to all Harbour or Terminal users and incorporated in the plan.
10. Plan review
11. Considering location and ease of use
12. Cost of Facilities

13. Inspections by MCA staff
14. Reducing, reusing and recycling waste
15. Waste handling in Ports/Terminals
16. Informational to be submitted to the MCA
17. Suggested reading



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1. Introduction

1.1 This annex updates guidance given in the 2004 publication ‘Port Waste Management Planning – A Guide to Good Practice’. The guidance details the process of Port Waste Management Planning.

1.2 Since January 1998 UK legislation has required ports, harbours and some terminals to draw up waste management plans for Maritime and Coastguard Agency (MCA) approval. The UK requirements for Port Waste Management have since been updated with the Merchant Shipping and Fishing Vessels (Port Waste Reception Facilities) Regulations 2003 (SI: 2003/1809), as amended, henceforth referred to as “the Regulations”. These transpose the EU Directive 2000/59/EC, as amended, of the European Parliament and Council on port reception facilities for ship generated waste and cargo residues.

2. Pollution from Shipping

2.1 The UK Government is committed to reducing the impact of shipping on the environment and works within international fora to achieve consistent standards. The International Convention on the Prevention of Pollution from Ships (known as MARPOL) provides an international framework on how pollution from shipping should be regulated. MARPOL is implemented in the UK through various Merchant Shipping Regulations. In addition, the European Union (EU) produces Directives and Regulations that are binding on Member States.

3. Development of Port Waste Management Planning

3.1 MARPOL simply requires States to ensure that the provision of waste reception facilities are “adequate” and do not cause “undue delay” to the ships using them. The Regulations give a definition of what adequate means. Regulation 4 states:

‘adequate’ means capable of receiving the types and quantities of prescribed wastes from ships normally using that harbour or terminal taking into account the operational needs of the users of the harbour or terminal, its size and geographical location, the types of ships calling there and any exemptions provided for[...]

3.2 The Regulations apply to all prescribed wastes which are: cargo residues, noxious liquid substances and ship generated waste. Ship generated waste is defined in the regulations as wastes and residues generated during the service of the ship which fall into the definition of garbage, sewage, oil and oily mixtures.

4. What is a Waste Management Plan?

4.1 A Port Waste Management Plan (PWMP) is a document produced by a port or terminal unifying their policy on waste reception facilities for ships and outlining the facilities available at the location. This plan should

demonstrate that they are fulfilling all the requirements of domestic and international regulations and that the facilities and infrastructure is available to meet the needs of vessels normally using the port/terminal without causing undue delays. The plan must be submitted to the MCA for approval and must be reviewed by the local Marine Office every three years or with every significant change.

5. When must a plan be produced?

5.1 The Regulations are applicable to any harbour or terminal within the UK. There is likely to be a duty to produce a plan in ports where there are: coasters loading or discharging cargo; passenger ship operations; larger terminals; commercial marinas; bases for commercial fishing activities; and, fish farm jetties where fish carriers and feed carriers berth. Marinas and sailing clubs from which yachts may go to sea for more than a day and so are likely to generate waste, and which charge a mooring or berthing fee, should also submit a plan. In assessing the need for a plan these organisations should consider if they are part of a wider port authority waste management regime already or if they require an independent waste management plan. If there is some doubt that a plan is required local MCA staff should be consulted.

5.2 Many UK ports operate on a landlord basis or contain discrete terminals and in such ports it could fall to the terminal operator to produce a PWMP and have appropriate reception facilities depending upon local arrangements. Where responsibility is unclear, terminals should clarify the local situation with the port authority. It is anticipated that in most cases there should be no disagreement about who should produce the plan but in cases where there is dispute the Secretary of State has the powers to issue direction determining who has to discharge the duties of this legislation, please also refer to Regional Arrangements in the MGN for further details.

5.3 Generally, a plan will not be called for if a facility is only used by ships in the following categories and on a limited scale:

- a) Pleasure vessels not usually left on site overnight;
- b) Day recreational craft which are unlikely to generate waste on board;
- c) Small scale yacht moorings provided by hotels;
- d) Small scale yacht moorings provided by sailing clubs outside of harbour authority areas used by ships designed or authorised to carry 12 passengers or less;

- e) Facilities used only by day fishing vessels; and
- f) Fish farms where the majority of waste is generated by onshore facilities.

Locations where fishing vessels are hauled onto beaches are unlikely to need a plan although the controlling authority, e.g. the local council, should be made aware of the need to provide appropriate waste facilities.

In all of these cases it is recommended that the location should consider the provision of waste reception facilities and production of a comparable plan as good as environmental practice.

6. Consultation with customers

6.1 Each harbour or terminal will have customers with differing priorities. Therefore, planners must consult their customers to be able to understand and meet their needs. Good facilities, at the right price, can only be provided if there is full and constructive dialogue between the harbour authority, terminal operator and the regular users as to what facilities should be provided to meet their normal needs for disposing of all types and quantities of waste, and for any special requirements. Ports/Terminals should consult with users as part of the triennial review of the waste management plan. Regular review meetings could be held as one way of continuing on-going consultation. At such meetings, the existing waste provision and plan could be discussed, together with suggested changes and improvements. Other methods include newsletters, questionnaires, the use of notice boards, contact with ships' agents and local representative bodies.

6.2 The MCA would expect that consultation will be undertaken as an integral part of Port Waste Management Planning and there is a requirement for ports/terminals to include information on their consultation process in the PWMP as laid down in schedule 1 of the Regulations. This Schedule is reproduced for reference in this guide under Section 8.0 (Information to be included in the plan) and should be referred to throughout the preparation and review of plans.

7. Data collection and assessing the need for waste reception facilities

7.1 Fully adequate facilities cannot be provided without an accurate assessment of the need for them. Each port/terminal should collate information under three headings:

- a) The amounts of each type of waste actually received in the port or terminal;
- b) The amounts of each type of waste which should be received in the port or terminal;
- c) The amounts of each type of waste stored by ships for reception in other ports/terminals.

7.2 When collating this information planners should refer to the data collected during the operation of the previous waste management plan and the notification/discharge information received. For ports or terminals producing a plan for the first time (eg: a newly built terminal) waste figures should be estimated based upon expected traffic, likely exemptions and the experience of similar facilities. Planners are advised to consider the maximum amount of waste that could be received when preparing a plan and then assess the need for facilities accordingly.

7.3 The information received from notification will aid the collection of waste arising statistics and enable waste management planners to tailor the requirements to ensure sufficient capacity of reception facilities. Ports/Terminals should keep copies of the notifications for a minimum of six months but data should be kept or collated so that plan holder can produce appropriate information when requested. This information will permit ports and terminals to review their waste management plan and allow changes in the demand for waste reception facilities to be monitored.

7.4 Please refer to Section 16.0 (Information to be submitted to the MCA) for details of the information to be retained, collated and returned to fulfil the reporting requirements.

8. Information to be included in the plan

8.1 Schedule 1 of the Regulations sets out what information should be included in the plan and MCA staff will check to ensure that this information is included when checking the plan for approval. The Schedule states that:

A waste management plan shall address the following elements -

- a) an assessment of the need for waste reception facilities, in the light of the need of the ships normally visiting the harbour or terminal;
- b) a description of the type and capacity of waste reception facilities;
- c) a detailed description of the procedures for the reception and collection of prescribed wastes;
- d) a description of the charging system;
- e) procedures for reporting alleged inadequacies of waste reception facilities;
- f) procedures for on-going consultations with persons using the harbour or terminal, waste contractors and other interested parties; and
- g) the type and quantities of prescribed wastes received and handled.

A waste management plan shall also include -

- a) a summary of relevant legislation and formalities for delivery;
- b) identification of a person or persons to be responsible for the implementation of the waste management plan;
- c) a description of the pre-treatment equipment and processes in the harbour or terminal if any;
- d) a description of methods of recording actual use of the waste reception facilities;
- e) a description of methods of recording amounts of prescribed wastes received; and
- f) a description of how the prescribed wastes are disposed of.

8.2 When ports/terminals submit their plan to MCA, they should include information explaining the method of charging and providing examples of

the charges levied. This information should include a breakdown of any consolidated charges in order to fulfil the requirements for transparency in the charging regime for port waste reception facilities. Additionally, the plan should provide an explanation of how ships exempted from the charge or falling outside of the Regulations will be accommodated.

9. Information to be made available to all Harbour or Terminal users and incorporated in the plan.

9.1 Schedule 1 of the Regulations also sets out information that must be made available to persons using the harbour or terminal, this information and a description of the methods used to promulgate it must be incorporated into the waste management plan:

- a) brief reference to fundamental importance of proper delivery of prescribed wastes;
- b) the location of waste reception facilities applicable to each berth, with a diagram or map;
- c) list of prescribed wastes normally dealt with;
- d) list of contact points, the operators and the services offered;
- e) description of procedures for delivery;
- f) description of charging system; and
- g) procedures for reporting alleged inadequacies of waste reception facilities.

9.2 While the Regulations set out what information should be made available to port users, it does not set out how this should be done. Each port/terminal must consider the most effective way of disseminating the information and should consider the methods outlined in Section 9 (Consultation). In particular ports/terminals should consider how irregular or new users can be informed of the requirements of the PWMP.

9.3 There should also be a well-publicised complaints procedure to enable difficulties to be resolved locally. This mechanism should allow problems to be raised as they occur rather than after the event. Ships retain the right to put in a formal report to MCA if they do not consider that their

complaints have not been dealt with adequately and plan holders should consider nominating a contact point for ship complaints and any MCA enquiries.

10. Plan review

10.1 There should be an ongoing process to assess the effectiveness of the plan's operation. Any comments or complaints should be fully considered and any necessary remedial action taken. The plan should be kept up to date. Under the Regulations, there must be a formal reassessment of waste management planning every three years and the revised plan must be submitted to MCA for approval. The plan will include a report covering the method of charging.

10.2 In addition, if there is a significant change to the operation of the port/terminal then a revised plan must be submitted within nine months of the change. The plan review conducted by the MCA will be a desktop exercise with plans reviewed on paper and the MCA will inspect the site if necessary. The plans should be sent to the nearest MCA Marine Office, where they will be re-approved if acceptable and sent back to the port or terminal.

11. Considering location and ease of use

11.1 In light of the requirements for ships to offload all prescribed waste before leaving a port/terminal the location and ease of use of facilities are important issues for port waste management. This is an area where advice from ship-operators and agents is vital. Port and terminal operators and any contractors must consider the relative merits of different locations for fixed facilities and the use of mobile facilities such as barges, road tankers and wheelie-bins. Operators will need to consider the cost-effectiveness of different options, recognising that the ship operators preferred solutions might be more expensive.

11.2 When selecting a site for facilities the following considerations should be taken into account: their siting should be convenient for users, contractors and vehicles but should not hinder other port/terminal operations or impact adversely on the local community; there should be a

minimal risk of wastes entering the water; and they should be clearly identified and well-lit.

11.3 In addition to the other methods of publicising the waste reception facilities available at the port/terminal there should be clear signs pointing to where the facilities are and showing what waste can be put in which facility. Pictorial signs that avoid the need for translation are ideal. If the facilities are mobile then the signage should make it clear how to locate and use them.

12. Cost of Facilities

12.1 Ships should bear the cost of providing reception facilities and for the treatment and disposal of the waste. However, the cost of using port waste reception facilities should not be so high as to encourage illegal discharge of waste into the sea. There is a legal obligation to ensure that the ship pays. In situations where there is no current charge for waste disposal there is a need to research and develop a scale of charges to cover this obligation. In the case of Ports and Terminals where uplift of garbage is undertaken by the local council and no charge levied then there may be a need to reassess the approach taken to waste from ships entering the port/terminal. Amounts generated and costs of disposal must be calculated and charges levied in order to place the costs squarely upon the polluters.

12.2 All ships, apart from fishing vessels (of whatever size) and recreational craft authorised to carry, or designed to carry no more than 12 passengers or ships with an MCA exemption, must contribute significantly to the cost of reception facilities through a mandatory charge levied irrespective of the actual use of the facilities. The charge must cover the costs of the reception, handling and disposal of all the waste which is delivered to the waste reception facilities. The charge may take into account the type, size and category of the ship and whether the ship produces reduced quantities of ship-generated waste because of its environmental management, design, equipment or operation. This mandatory charge will normally cover an amount of garbage estimated from a ship and handled by the port/terminal or a locally arranged contractor. The charge and amount of waste covered should be calculated with regard to the needs of users for waste reception facilities.

12.3 The harbour authority, port or terminal may apply the charge by means of consolidating it with the harbour dues (or equivalent) or may apply it as separate charge. The charge and how it has been calculated must be made clear to port/terminal users to show that it is fair,

transparent and non- discriminatory and reflects the costs of the facilities and services provided.

12.4 The UK Government does not wish to be prescriptive about the level of the charge. However, the costs which the port/terminal incurs by providing waste reception facilities and which are consequently covered by the charge must amount to a significant proportion of the total cost of dealing with all the waste delivered by ships using the port/terminal. In practice, we would almost always expect the charge levied by the port/terminal to equate to at least 30% of that total cost, and we are confident that some ports/ terminals will have ample justification for levying a charge which is appreciably higher (i.e. in those cases where a higher proportion of the waste delivered in the port/terminal is delivered to the waste reception facilities provided by the port/terminal).

13. Inspections by MCA staff

13.1 MCA staff will inspect a number of ports/terminals each year. The inspections will include discussions with the port or terminal operator and their users, checking records, walking the site to check the position of facilities and gain an overall impression of the effectiveness of waste provision. They will check the accuracy of the approved plan and whether current practice complies with the plan. Additionally, the MCA may investigate if ships report inadequacies in the Port/Terminals waste management facilities.

14. Reducing, reusing and recycling waste

14.1 When assessing the best practical environmental option for dealing with waste the following principles should be encouraged:

- reduction of the amount of waste generated;
- its re-use (either for the same or a different purpose);
- recycling to recover value from the waste; and
- composting or energy recovery.

14.2 Final disposal of the waste should only be undertaken if none of the above can be applied. The most obvious application for ports/terminals is to provide facilities for recycling. While the amounts of recyclable waste from ships alone may not make it economic to provide special facilities, they may become viable if they are part of a co-ordinated system with the local community ashore. Businesses and visitors in port/terminal areas all produce wastes that must be disposed of and the consultation, and involvement of shoreside recycling schemes and ships that do segregate waste could be considered as part of Port Waste Management Planning. It is recommended that planners review the manner in which Port Waste is handled by their contractors and encourage environmentally sustainable options in waste management. In particular planners should consider the needs of their customers for reception facilities for segregated wastes.

15. Waste handling in Ports/Terminals

15.1 A number of government organisations have responsibilities for waste coming into ports/terminals and should be consulted on the PWMP to ensure all legislation is being met. Ports/terminals should confirm that their waste handling practices comply with these requirements, including letters of confirmation when submitting the plan to MCA for approval. Time should be allowed for this when drawing up and reviewing plans.

15.2 The Environment Agency (EA) in England and Natural Resources Wales in Wales, the Scottish Environment Protection Agency (SEPA) in Scotland, and the Northern Ireland Environment Agency (NIEA) in Northern Ireland are responsible for the issue of waste management licences to recycling and waste handling facilities and their regulation. Port Waste Management Planners should ensure that their facilities and/or contractors fulfil the requirements of these licences and any other requirements under current UK law.

15.3 When developing and implementing the PWMPs, it is recommended that ports/terminals consult appropriate regulators and other interested parties including their Port Health Authority.

15.4 Hazardous wastes are subject to the requirements of the EC's Hazardous Waste Directive (91/689/EEC) as amended. The Directive is currently transposed in Great Britain by the Special Waste Regulations 1996 (as amended) and in Northern Ireland by the Special Waste Regulations (Northern Ireland) 1998, as amended. Ship sourced special waste is covered by these regulations which are enforced by the EA in England and Natural Resources Wales in Wales, the SEPA in Scotland and by the EHS in Northern Ireland.

Essentially ship generated special waste can be described as any controlled waste displaying the hazardous properties listed in the Special Waste Regulations, plus prescription only medicines. The hazardous properties listed in the regulations include: explosive, flammable, oxidising, irritant, harmful, toxic, carcinogenic and corrosive properties. In preparing a PWMP provision should be made for the removal and disposal of these special wastes through the arrangements with waste contractors and the provision of suitable facilities as required by the users of the port/terminal. Further information can be provided by the competent UK agencies – EA in England and Natural Resources Wales in Wales, SEPA in Scotland and NIEA in Northern Ireland. Please see Appendix I, for contact information.

15.5 Food wastes are classified as ship-generated wastes under these regulations and therefore adequate facilities should be provided as part of the port/terminal waste management plan. However, this waste is also controlled through the Animal Health By products Regulations (EU 142/2011) as amended, and its implementation in the UK. Ports and terminals should consult the local DEFRA (animal health) office or the appropriate regulators in Wales, Scotland and Northern Ireland to ensure their port waste reception facilities are adequate with respect to this specific waste, consult over their waste plans and to confirm they are fulfilling any applicable duties under the Regulations and domestic law. Ports/Terminals should advertise the proper provision for food waste and make sure it is included in any contracts with waste contractors.

15.6 There is a risk that imported wood packaging material (WPM) and loose dunnage associated with all kinds of goods could be the means of introducing a wide range of forestry pest and diseases into the UK.

WPM associated with goods imported from non EU countries (and Portugal) must be compliant with ISPM15 (International Standards for Phytosanitary Measures No. 15) an International Phytosanitary Measure developed by the International Plant Protection Convention (IPPC) that directly addresses the need to treat wood materials of a thickness greater than 6mm, used to ship products between countries. Its main purpose is to prevent the international transport and spread of disease and insects that could affect hard trees, plants and ecosystems.

Plywood and other associated or reconstituted wood products are not included and may be used freely. The Plant Health (Forestry) order 2005 article 12 (8), lays down the minimum facilities which must be provided by port/terminal authorities to meet the requirements of the Order and allow Plant Health Inspectors to carry out their responsibilities, see Minimum facilities at ports guidance.

Guidance is also available on the requirements around landing WPM and dunnage in the UK. If any dunnage or WPM does not meet UK landing requirements, then a plant health inspector will serve a statutory notice compelling the importer/captain/shipping agent to dispose of the non-compliant material in a secure manner. This can be through burning, ideally on site or at a licenced incinerator nearby. Alternatively, in exceptional circumstances the material may be treated by an approved operator to make it ISPM15 compliant. All ports/terminals must either provide suitable, clearly labelled, disposal facilities on site or direct captains or shipping agents to off-site premises which are equipped to take such materials.

There is also the option to re-export non-compliant WPM and dunnage although this is not advised as it may lead to non-compliant material being disposed of overboard once out at sea. Please see Appendix I, for contact information.

16. Informational to be submitted to the MCA

16.1 There is a continuing requirement under MARPOL for the UK to provide information to the International Maritime Organization (IMO) as to the adequacy of port reception facilities in the UK. Hence the IMO established the Port Reception Facilities Database (PRFD) within its Global Integrated Ship Information System (GISIS). The PRFD relies on up to date information being provided by the Port States. Appendix II sets out the information which needs to be completed and maintained. Once the information has been submitted to your local MCA Marine Office who approved your port waste management plan, updates will only be required if there are changes to the already submitted information. Further information on PRFD and GISIS can be found in MEPC.1/Circ.834, see suggested reading.

16.2 Please note that the introduction of the Consolidated European Reporting System in 2006, has removed the need for reporting the PRF requirements for the EU Directive in hard copy. Reporting procedures for ports/terminals in relation to EU Directives and Regulations are now captured electronically.

17. Suggested reading

Comprehensive Manual on Port Reception Facilities, IMO Publication
1999. ISBN 978-92-801-60949.

MEPC.1/Circ.834, Consolidated guidance for port reception facility
providers and users.



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